



DATA PROCESSING AGREEMENT

GDPR / Personal Data Processing

Agreement Reference: DL-DPA-[NUMBER]

Version: 1.0

Effective Date: [DATE]

Classification: Commercial Confidential

S. D. MELAS TRADING BUSINESS x [CLIENT FULL LEGAL NAME]

MASTER TEMPLATE - complete all processing details and obtain privacy/legal review before execution.

1. PARTIES

This Data Processing Agreement (the "DPA") is entered into between:

- S. D. MELAS TRADING BUSINESS, trading as DISTILLOGIC TECHNOLOGIES, having its registered office at Zoodoxou Pigis 11, Patras, Greece, VAT / Tax Identification Number EL132234268, GEMI / Registration Number 147185216000,
- hereinafter referred to as "DISTILLOGIC" or the "Processor",

and

- [CLIENT FULL LEGAL NAME], having its registered office at [ADDRESS], registration / VAT number [NUMBER], hereinafter referred to as the "Client" or the "Controller."

DISTILLOGIC and the Client may each be referred to as a "Party" and together as the "Parties."

2. PURPOSE

This DPA governs the Processing of Personal Data by DISTILLOGIC on behalf of the Client in connection with services provided under:

- the Master Services Agreement;
- applicable Statements of Work;
- Purchase Orders;
- Call-Off Orders;
- Commercial Proposals;

or other agreed service arrangements.

This DPA forms part of the Parties' contractual framework.

3. ROLE OF THE PARTIES

For Personal Data Processed by DISTILLOGIC on behalf of the Client under this DPA:

Client

acts as the:

Controller

and determines the purposes and means of Processing.

DISTILLOGIC

acts as the:

Processor

and Processes Personal Data only on documented instructions from the Client, except where otherwise required by applicable law.

If the Parties act in different roles for a particular Processing activity, those roles shall be documented separately.

4. DEFINITIONS

For purposes of this DPA:

"Personal Data"

means any information relating to an identified or identifiable natural person.

"Processing"

means any operation performed on Personal Data, including:

- collection;
- recording;

- organisation;
- storage;
- alteration;
- retrieval;
- consultation;
- use;
- transmission;
- disclosure;
- restriction;
- deletion;

destruction.

“Data Subject”

means the natural person to whom Personal Data relates.

“Controller”

means the entity determining the purposes and means of Processing.

“Processor”

means the entity Processing Personal Data on behalf of the Controller.

“Subprocessor”

means a third party engaged by DISTILLOGIC to Process Personal Data on behalf of the Client.

“Personal Data Breach”

means a breach of security leading to accidental or unlawful:

- destruction;
- loss;
- alteration;
- unauthorised disclosure of;

or access to Personal Data.

“Applicable Data Protection Law”

includes Regulation (EU) 2016/679 (GDPR) and other applicable data-protection legislation.

5. SUBJECT MATTER OF PROCESSING

The subject matter of Processing is the provision of:

[DESCRIPTION OF SOFTWARE / SERVICE / PROJECT]

by DISTILLOGIC to the Client.

The specific Processing activities are described in:

Annex 1 — Processing Details

6. DURATION OF PROCESSING

Processing shall continue for the duration of the applicable Services unless:

- Personal Data is deleted earlier;
- the Client instructs otherwise;

applicable law requires continued retention.

Processing shall cease when the relevant Services terminate, subject to lawful retention requirements.

7. NATURE AND PURPOSE OF PROCESSING

DISTILLOGIC may Process Personal Data only to the extent necessary to perform the agreed Services.

Processing may include, where applicable:

- application hosting;
- software development;
- application maintenance;
- troubleshooting;
- technical support;
- database administration;
- data migration;
- systems integration;
- testing;
- monitoring;
- analytics;
- backup and recovery;
- cloud operations;
- security monitoring;

user-support activities.

The actual nature and purpose of Processing shall be specified in Annex 1.

8. DOCUMENTED INSTRUCTIONS

DISTILLOGIC shall Process Personal Data only:

on documented instructions from the Client; or

where required by applicable law.

Documented instructions may be contained in:

- this DPA;
- the MSA;
- a SOW;
- a Purchase Order;
- technical documentation;
- written project instructions;

authorised Client communications.

DISTILLOGIC shall not intentionally Process Personal Data for unrelated commercial purposes.

9. UNLAWFUL INSTRUCTIONS

If DISTILLOGIC reasonably believes that a Client instruction infringes Applicable Data Protection Law, DISTILLOGIC shall inform the Client without undue delay.

DISTILLOGIC may suspend execution of the affected instruction while the Parties clarify the applicable legal requirements where reasonably necessary.

10. CONTROLLER RESPONSIBILITIES

The Client is responsible for:

- establishing an appropriate lawful basis for Processing;
- providing required privacy information to Data Subjects;
- ensuring that its instructions are lawful;

- ensuring that Personal Data supplied to DISTILLOGIC may lawfully be Processed;
- defining appropriate retention periods;
- responding to regulatory obligations applicable to it as Controller;

ensuring that Processing is proportionate to the intended purpose.

DISTILLOGIC does not determine the Client's lawful basis merely by providing technical Services.

11. CONFIDENTIALITY OF PERSONNEL

DISTILLOGIC shall ensure that persons authorised to Process Personal Data:

- are subject to appropriate confidentiality obligations;
- receive access only where necessary;

are informed of applicable data-protection and security responsibilities.

Access shall be limited according to role and operational necessity.

12. ACCESS CONTROL

DISTILLOGIC shall use appropriate access-control mechanisms for systems under its responsibility.

Measures may include:

- unique user accounts;
- role-based access;
- least-privilege principles;
- multi-factor authentication where appropriate;
- privileged-access restrictions;
- access revocation;

periodic access review.

Specific Client security requirements may be documented separately.

13. SECURITY OF PROCESSING

DISTILLOGIC shall implement appropriate technical and organisational measures proportionate to:

- the nature of the Processing;
- the sensitivity of Personal Data;
- the risk to Data Subjects;
- available technology;
- implementation cost;

contractual requirements.

Measures may include those identified in:

Annex 2 — Technical and Organisational Measures

14. TECHNICAL AND ORGANISATIONAL MEASURES

Measures may include, where applicable:

Identity & Access Management

- role-based permissions;
- least privilege;
- strong authentication;

access reviews.

Encryption

- encryption in transit;

- encryption at rest where appropriate;
- secure key management.

Secure Development

- source control;
 - code review;
 - dependency management;
 - secure coding practices;
- vulnerability remediation.

Infrastructure Security

- system hardening;
 - network controls;
 - environment separation;
 - firewall controls;
- secrets management.

Monitoring

- logging;
 - monitoring;
 - security alerts;
- audit trails where appropriate.

Resilience

- backups;
 - disaster recovery;
 - restoration procedures;
- availability controls.

Organisational Measures

- confidentiality obligations;
 - security policies;
 - access procedures;
 - personnel awareness;
- incident-response procedures.

The exact controls depend on the Services and Client requirements.

15. DATA MINIMISATION

DISTILLOGIC shall Process only Personal Data reasonably necessary for the agreed Services and documented instructions.

Where feasible, the Parties should avoid using unnecessary production Personal Data for:

- development;
 - testing;
 - training;
- demonstrations.

Where appropriate, anonymised, pseudonymised or synthetic data should be considered.

16. PRODUCTION DATA IN DEVELOPMENT AND TESTING

Production Personal Data shall not be copied into development or test environments unless:

- reasonably necessary;
- authorised by the Client;

appropriately protected.

Where feasible, masking, pseudonymisation or other safeguards should be used.

17. SUBPROCESSORS

The Client authorises DISTILLOGIC to engage Subprocessors subject to the requirements of this DPA.

DISTILLOGIC shall ensure that each Subprocessor with access to Personal Data is bound by contractual data-protection obligations substantially equivalent to those applicable to DISTILLOGIC.

DISTILLOGIC remains responsible for its Subprocessors to the extent required by Applicable Data Protection Law.

18. SUBPROCESSOR LIST

Approved or relevant Subprocessors shall be identified in:

Annex 3 — Subprocessor Register

The register may include:

- provider;
- service;
- Processing purpose;
- Processing location;

transfer mechanism where applicable.

19. CHANGES TO SUBPROCESSORS

DISTILLOGIC shall provide reasonable notice before materially adding or replacing a Subprocessor that will Process Client Personal Data.

The Client may raise a reasonable data-protection objection within:

[10–15] business days

of receiving notice.

The Parties shall work in good faith to address a valid objection.

If no commercially reasonable alternative is available, the Parties may agree appropriate modifications to the affected Services.

20. DATA SUBJECT REQUESTS

Where DISTILLOGIC receives a request directly from a Data Subject concerning Personal Data Processed on behalf of the Client, DISTILLOGIC shall:

- not respond substantively unless authorised or legally required;
- notify the Client where appropriate;

provide reasonable assistance to enable the Client to respond.

Such requests may include:

- access;
- correction;
- deletion;
- restriction;
- portability;

objection.

21. ASSISTANCE WITH DATA SUBJECT RIGHTS

Taking into account the nature of Processing, DISTILLOGIC shall provide reasonable technical and organisational assistance to the Client in fulfilling applicable Data Subject rights.

Where assistance requires material work outside the agreed Services, the Parties may agree reasonable additional commercial terms.

22. PERSONAL DATA BREACH

DISTILLOGIC shall notify the Client without undue delay after becoming aware of a confirmed Personal Data Breach affecting Personal Data Processed under this DPA.

DISTILLOGIC shall provide information reasonably available concerning:

- nature of the incident;
- affected systems;
- categories of Personal Data;
- categories of affected Data Subjects;
- likely consequences;
- containment measures;

mitigation actions.

Information may be provided in phases where it is not immediately available.

23. BREACH INVESTIGATION

Following a Personal Data Breach, DISTILLOGIC shall:

- take reasonable steps to contain the incident;
- investigate the cause;
- mitigate reasonably foreseeable harm;
- preserve appropriate incident records;

cooperate reasonably with the Client.

DISTILLOGIC shall not make public statements identifying the Client without authorisation unless legally required.

24. REGULATORY NOTIFICATION

The Client, as Controller, remains responsible for determining whether notification must be made to:

- a supervisory authority;
- affected Data Subjects;

another regulator.

DISTILLOGIC shall provide reasonable assistance with information available to it.

25. DATA PROTECTION IMPACT ASSESSMENTS

Where reasonably required by the nature of the Processing, DISTILLOGIC shall provide information and assistance reasonably necessary for the Client to conduct:

- Data Protection Impact Assessments;

prior consultations with supervisory authorities.

Such assistance shall be proportionate to DISTILLOGIC's role and knowledge of the Processing.

26. RECORDS OF PROCESSING

DISTILLOGIC shall maintain records required of processors under Applicable Data Protection Law.

Such records may include:

- Client identity;

- categories of Processing;
- international transfers;

general security measures.

27. COMPLIANCE INFORMATION

DISTILLOGIC shall make available information reasonably necessary to demonstrate compliance with its processor obligations under this DPA.

This may include, where appropriate:

- policies;
- security summaries;
- certifications;
- audit reports;
- architecture information;

Subprocessor information.

Confidential or security-sensitive information may be provided under appropriate restrictions.

28. AUDIT RIGHTS

The Client may conduct or commission a reasonable audit where necessary to verify compliance with this DPA.

Audits shall normally:

- be conducted during normal business hours;
- be subject to reasonable prior notice;
- avoid unnecessary disruption;
- be limited to systems and information relevant to the Client;

be subject to confidentiality requirements.

Where an independent audit report or certification reasonably satisfies the Client's requirements, the Parties should consider using such evidence before requiring an onsite audit.

29. AUDIT COSTS

Each Party shall normally bear its own internal costs relating to routine compliance activity.

Where the Client requests an exceptional, extensive or repeated audit not arising from a material DISTILLOGIC breach, reasonable additional assistance may be chargeable subject to prior agreement.

30. INTERNATIONAL DATA TRANSFERS

DISTILLOGIC shall not transfer Personal Data outside the European Economic Area where such transfer requires a legal transfer mechanism unless an appropriate safeguard or lawful mechanism is in place.

Such mechanisms may include:

- adequacy decision;
- applicable Standard Contractual Clauses;
- Binding Corporate Rules;

other legally recognised transfer mechanisms.

31. STANDARD CONTRACTUAL CLAUSES

Where required for an international transfer, the Parties shall incorporate or enter into the applicable European Commission Standard Contractual Clauses.

Where DISTILLOGIC acts as Processor and transfers Personal Data to a Subprocessor outside the EEA, the appropriate transfer mechanism shall be implemented where required.

32. TRANSFER ASSESSMENT

Where Applicable Data Protection Law requires additional assessment of an international transfer, the Parties shall cooperate reasonably concerning:

- destination country;
- nature of transferred data;
- applicable legal safeguards;
- technical supplementary measures;

contractual safeguards.

33. GOVERNMENT ACCESS REQUESTS

Where DISTILLOGIC receives a legally binding government or law-enforcement request for Client Personal Data, DISTILLOGIC shall, to the extent legally permitted:

- notify the Client;
- review the legal validity of the request;
- limit disclosure to what is legally required;

seek appropriate confidentiality where reasonably available.

DISTILLOGIC shall not voluntarily provide Client Personal Data to public authorities except where authorised or legally required.

34. DATA LOCATION

The primary Processing locations shall be identified in Annex 1 and/or Annex 3.

The Client may specify contractual data-location requirements in the applicable SOW where such requirements are necessary for:

- regulatory;
- security;
- procurement;

contractual reasons.

No general representation that all data remains in Greece shall apply unless expressly agreed.

35. DATA RETENTION

Personal Data shall be retained only for as long as reasonably necessary to perform the Services or comply with legal obligations.

Retention periods may be defined by:

- Client instruction;
- system configuration;
- SOW;

applicable legal requirements.

36. RETURN OR DELETION

Upon termination of the relevant Services, the Client may instruct DISTILLOGIC to:

- return Personal Data;
- delete Personal Data;
- or both,

unless continued retention is required by applicable law.

37. BACKUPS

Personal Data may temporarily remain within standard backup or disaster-recovery systems after deletion from active systems.

Where immediate deletion from backup systems is technically impractical:

- data shall remain protected;
- access shall remain restricted;
- data shall not be restored for ordinary use;

deletion shall occur through normal backup lifecycle processes.

38. SECURE DELETION

Where applicable and technically feasible, deletion shall use methods appropriate to:

- the storage medium;
- data sensitivity;

technical environment.

39. CONFIDENTIAL INFORMATION

Personal Data Processed under this DPA shall also be treated as Confidential Information under the applicable NDA and/or MSA.

Where data-protection requirements impose stricter obligations, those stricter requirements shall apply.

40. CLIENT SECURITY INSTRUCTIONS

The Client may establish reasonable project-specific security requirements.

Such requirements should be:

- documented;
- technically feasible;
- proportionate;

agreed before implementation where they create additional cost or delivery impact.

Material new security requirements may require a Change Request.

41. SECURITY TESTING

Where included in the Services, security-related testing may include:

- dependency scanning;
- static code analysis;
- authentication testing;
- authorisation testing;
- secure configuration review;

vulnerability assessment.

Formal penetration testing or regulated security certification is included only where expressly stated in the applicable SOW.

42. SECURITY INCIDENT COOPERATION

The Parties shall maintain appropriate escalation contacts for material security incidents.

DISTILLOGIC Security Contact

Name / Role: [CONTACT]

Email: [EMAIL]

Telephone: [NUMBER]

Client Security / Privacy Contact

Name / Role: [CONTACT]

Email: [EMAIL]

Telephone: [NUMBER]

43. PRIVACY CONTACT

DISTILLOGIC

Privacy Contact: [NAME / ROLE]

Email: [PRIVACY EMAIL]

CLIENT

Privacy / DPO Contact: [NAME / ROLE]

Email: [EMAIL]

Where a Party has formally appointed a Data Protection Officer, the applicable DPO contact may be included.

44. LIABILITY

Liability arising under this DPA shall be governed by the applicable liability provisions of the Master Services Agreement, subject to:

- mandatory Applicable Data Protection Law;

any specific liability arrangement expressly agreed for data-protection obligations.

Nothing in this DPA limits liability where such limitation is prohibited by law.

45. TERM

This DPA shall remain in effect for as long as DISTILLOGIC Processes Personal Data on behalf of the Client.

Applicable obligations shall survive termination for as long as DISTILLOGIC retains Personal Data subject to this DPA.

46. TERMINATION

Termination of the MSA or applicable SOW shall not terminate continuing obligations concerning:

- confidentiality;
- deletion;
- return;
- security;
- regulatory cooperation;

retained Personal Data.

47. CONFLICT WITH OTHER AGREEMENTS

In relation specifically to Personal Data Processing obligations, this DPA shall prevail over conflicting general provisions of the MSA or SOW unless:

the other provision provides greater protection; or

the Parties expressly agree otherwise in compliance with applicable law.

48. CHANGES IN LAW

If Applicable Data Protection Law materially changes, the Parties shall cooperate in good faith to make amendments reasonably required for continued lawful Processing.

49. GOVERNING LAW

Unless otherwise agreed in the MSA:

Laws of Greece

shall govern this DPA, subject to mandatory provisions of Applicable Data Protection Law.

50. JURISDICTION

Unless otherwise agreed in the MSA:

Courts of Patras, Greece

shall have jurisdiction, subject to applicable mandatory legal requirements.

51. ELECTRONIC SIGNATURES

This DPA may be executed electronically where legally permitted.

Signed electronic counterparts may be treated as originals.

52. ENTIRE DATA PROCESSING AGREEMENT

This DPA, together with its Annexes and any incorporated transfer clauses, constitutes the Parties' agreement regarding the Processing governed by this DPA.

SIGNATURES

FOR DISTILLOGIC

Legal Entity: S. D. MELAS TRADING BUSINESS

Trading Name: DISTILLOGIC TECHNOLOGIES

Name: Spiros Melas

Title: Managing Director

Signature: _____

Date: _____

FOR THE CLIENT

Legal Entity: [CLIENT LEGAL NAME]

Name: _____

Title: _____

Signature: _____

Date: _____

ANNEX 1 — PROCESSING DETAILS

A. Subject Matter

[DESCRIPTION OF SERVICE / PROJECT]

B. Duration

[PROJECT / CONTRACT DURATION]

C. Nature of Processing

Select / describe as applicable:

- Collection
- Storage
- Hosting
- Access
- Consultation
- Modification
- Transmission
- Integration
- Testing
- Support
- Backup
- Deletion

Other: [DETAIL]

D. Purpose of Processing

[DESCRIPTION]

Example:

Processing necessary to host, maintain, support and develop the Client's software application and provide related technical services.

E. Categories of Data Subjects

May include:

Client customers

Client employees

Client contractors

platform users

website users

suppliers

business contacts

other: [DETAIL]

Only applicable categories should remain.

F. Categories of Personal Data

May include:

Identity Data

- name;
- username;

internal identifier.

Contact Data

- email;
- telephone number;

business address.

Account Data

- user ID;
- role;

permissions.

Technical Data

- IP address;
- device information;
- logs;

session identifiers.

Business Data

- job title;
- company;

business activity information.

Other

[DETAIL]

Only Personal Data actually required by the project should be listed.

G. Special Categories of Personal Data

Select:

- None expected

or

[DESCRIPTION OF SPECIAL CATEGORY DATA]

Special-category Personal Data should not be Processed unless specifically required, documented and appropriately protected.

H. Processing Frequency

[CONTINUOUS / DAILY / PERIODIC / AD HOC]

I. Retention Period

[RETENTION PERIOD / CLIENT INSTRUCTION]

J. Processing Locations

Primary location(s):

[EU/EEA COUNTRY]

[CLOUD REGION]

[OTHER]

ANNEX 2 — TECHNICAL & ORGANISATIONAL MEASURES

Applicable measures may include:

Access Security

- unique accounts;
- role-based access;
- least privilege;
- MFA where appropriate;

access revocation.

Data Security

- encryption in transit;
- encryption at rest where appropriate;
- secure storage;

backup protection.

Development Security

- private repositories;
- code review;
- controlled deployments;
- dependency management;

environment separation.

Operational Security

- logging;
- monitoring;
- incident response;
- vulnerability management;

backup and recovery.

Personnel

- confidentiality agreements;
- controlled onboarding;
- access management;

security awareness.

Business Continuity

- backup procedures;
- restoration capability;

infrastructure redundancy where appropriate.

Additional Client-specific measures:

[DETAIL]

ANNEX 3 — APPROVED SUBPROCESSORS

Examples may include relevant:

Subprocessor	Service	Processing Purpose	Location	Transfer Mechanism
[Provider]	[Service]	[Purpose]	[Country]	[N/A / SCC / Adequacy]
[Provider]	[Service]	[Purpose]	[Country]	[Mechanism]
[Provider]	[Service]	[Purpose]	[Country]	[Mechanism]

- cloud providers;
- hosting providers;
- monitoring providers;
- support platforms;

infrastructure providers.

Only actual Subprocessors should be listed.

ANNEX 4 — INTERNATIONAL TRANSFERS

Where Personal Data is transferred outside the EEA:

Exporter

[ENTITY]

Importer

[ENTITY]

Destination

[COUNTRY]

Transfer Mechanism

[ADEQUACY / SCCs / OTHER]

SCC Module

[MODULE IF APPLICABLE]

Supplementary Measures

[DETAIL]

ANNEX 5 — DATA BREACH CONTACTS

DISTILLOGIC

Security Contact: [NAME / ROLE]

Email: [EMAIL]

Telephone: [NUMBER]

Privacy Contact: [NAME / ROLE]

Email: [EMAIL]

CLIENT

Security Contact: [NAME / ROLE]

Email: [EMAIL]

Privacy / DPO Contact: [NAME / ROLE]

Email: [EMAIL]

DISTILLOGIC TECHNOLOGIES

Software Engineering & Technology Delivery

Patras, Greece · European Union

Website: distillogic.gr

Privacy Contact: [EMAIL]

Legal Contact: [EMAIL]

Document Reference: DL-DPA-[NUMBER]

Version: 1.0

Classification: Commercial Confidential

Complexity distilled. Technology delivered.

LEGAL REVIEW NOTICE

This DPA is a commercial template intended to provide a framework for controller–processor relationships.

Before execution, the Parties should verify:

- actual Controller / Processor roles;
- categories of Personal Data;
- Data Subjects;
- Processing purposes;
- retention periods;
- security controls;
- actual Subprocessors;
- international transfer mechanisms;
- applicable Standard Contractual Clauses;

project-specific regulatory obligations.

Where international transfers, special-category data, large-scale monitoring, healthcare information, financial information or other higher-risk Processing is involved, qualified privacy/legal review is recommended.